

EXAMINATION SCHEME

B.A. L.L.B. (Hons.), Semester- VII

Subject wise marks allotted and corresponding credits (w.e.f-2019-20)

S. No.	Subject Code	Name of subject	Marks Allotted							Total Marks	Credit / Contact Hours per Week			Total Credits
			Theory		Internal Assignment		Practical / Viva-Voice				L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks						
1	BAL-701 (A)	Property Law	80	32	20	8	0	0	100	6	1	0	7	
2	BAL-702 (A)	Company Law	80	32	20	8	0	0	100	6	1	0	7	
3	BAL-703 (C)	Land Law Including Tenure and Tenancy System	80	32	20	8	0	0	100	6	1	0	7	
4	BAL-704 (C)	Banking Law	80	32	20	8	0	0	100	6	1	0	7	
5	BAL-705 (B)	Professional Ethics and Professional Accounting System	80	32	0	0	20	8	100	6	1	1	8	
TOTAL			400	160	80	32	20	8	500	30	5	1	36	

L: Lecture T: Tutorial P: Practical

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL

Jatkhedi, NH-12, Hoshangabad Road, Bhopal-462026

B.A. L.L.B. (HONS.) PART-IV SEMESTER - VII PAPER – I PROPERTY LAW

UNIT-I Introduction

1. Concept and meaning of property,
2. Various definitions given under Transfer of Property Act,
3. Kinds of property
 - (i) Movable and immovable property
 - (ii) Tangible and intangible property
4. Intellectual property-copyright, patents and designs, trademarks

UNIT-II Law relating to Transfer of Property under Transfer of Property Act, 1882

1. General principles of transfer of property whether movable or immovable What may be transferred
2. Competence, operation, conditions of restraining, alienation and repugnant to interest
3. Other Conditions – determinable on insolvency, transfer to unborn person, Rule against perpetuity, accumulation, transfer for benefit of Public in perpetuity
4. Conditional transfers – Condition precedent and subsequent, Vested and Contingent interest, Void condition, Election – Doctrine and Apportionment

UNIT-III Transfers of Immovable Properties and Movable Properties

1. Sale 2. Mortgage 3. Gift 4. Leases 5. Exchanges 6. Actionable claims

UNIT-IV M.P. Accommodation Control Act 1961

1. Preamble, Definitions and Provisions Regarding Rent
2. Control of Evictions of Tenants
3. Eviction on grounds of bonafide Requirement
4. Deposit of Rents

UNIT-V Rent Controlling Authority

1. Appointment
2. Powers and Functions of Rent Controlling Authority
3. Procedure
4. Appeals
5. Special obligations and penalties of Land Lords
6. Miscellaneous provisions

SELECTED BIBLIOGRAPHY:-

1. Mulla : Transfer of Property Act
2. V.P. Sarthy : Transfer of Property
3. R.K. Sinha : Law of Transfer of Property

B.A. L.L.B. (HONS.) PART-IV SEMESTER - VII
PAPER – II COMPANY LAW

UNIT-I Meaning of Company

1. Theories of corporate personality
2. Creation and exemption of corporations
3. Lifting the corporate veil

UNIT-II Forms of corporate and non-corporate organization

1. Corporations
2. Partnership and other association of persons,
3. State corporations
4. Government companies, small scale, cooperative, corporate and joint sectors

UNIT-III Law relating to Companies - Public and Private

1. Promoters and its position
2. Need of company for development, formation of a company, registration and incorporation
3. Memorandum of association - various clauses - alteration therein - doctrine of ultra vires
4. Articles of association-binding force-alteration-its relation with memorandum of association-doctrine of constructive notice and indoor management- exceptions
5. Prospectus- issue - contents- liability for misstatements in lieu of prospectus
6. Shares-general principles of allotment, statutory restrictions, transfer of shares, relationship between transferor and transferee
7. Shareholder-who can be? And who cannot be shareholder- modes of becoming shareholder- calls on shares- forfeiture and surrender of shares lien on shares
8. Share capital-kinds-alteration and reduction of share capital, further issue of capital-conversion of loan and debentures into capital-duties of courts to protect the interests of creditors and share holders

UNIT-IV Management of corporate structure

1. Directors - position- appointment-qualifications-vacation of office-removal- resignation-powers and duties of directors - meeting, registers, loans - remuneration of directors - role of nominee directors - companies for loss of office - managing directors and other managerial personnel
2. Meetings – kinds, procedure – voting
3. Dividends payment - capitalization – profit
4. Audit and accounts
5. Borrowing powers, effect of unauthorized borrowing - charges and mortgages – investments
6. Debentures - meaning - fixed and floating charges - kinds of debentures, share holder and debenture holder, remedies for debenture holders
7. Protection of minority rights
8. Protection of oppression and mismanagement - who can apply? Powers of the company, court and of the central Government
9. Investigations, powers.

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL
Jatkhedi, NH-12, Hoshangabad Road, Bhopal-462026

10. Private companies - nature and advantages- government companies- holding and subsidiary companies

UNIT – V Winding up and corporate liability

1. Winding up -types – Concept (Dissolution and liquidation)
 - (i) by court - reason - ground who can apply - procedure - powers of liquidator - powers of court - consequences of winding up order
 - (ii) voluntary winding up
 - (iii) subject to supervisions of courts
 - (iv) liability of past members - payment of liability preferential payment, unclaimed dividends
 - (v) winding up of unregistered company.
2. Legal liability of companies-civil and criminal
3. Remedies against civil, criminal and tortuous - specific relief Act, writs, liability under special statutes

SELECTED BIBLIOGRAPHY

1. Avtar Singh Indian Company Law (1999). Eastern Lucknow
2. L.C.B. Gower. Principles of Modern Company Law (1997) Sweet and Maxwell London.
3. Palmer Palmers Company Law (1987). Stevens, London
4. R.R. Pennington. Company Law (1990). Butterworths
5. A. Ramiya. Guide to the Companies Act. (1998), Wadhwa
6. S.M. Shah Lectures on Company Law (1998), Tripathi, Bombay.

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL
Jatkhedi, NH-12, Hoshangabad Road, Bhopal-462026

B.A. L.L.B. (HONS.) PART-IV SEMESTER - VII
PAPER – III LAND LAWS INCLUDING TENURE AND TENANCY SYSTEM

UNIT – I Concept

1. Objects and Reasons and Basic features of enacting Madhya Pradesh Land Revenue Code, 1959.
2. Definitions : Abadi, Agriculture, Agriculture and Revenue years, Board, Bonafide Agriculturist, Co-operative Society, Government Forest, Government Lessee, Holding, Improvement, Land, Landless Person, Land Records, Mango grove, Orchard, Plot number, Rents, Revenue Officer.
3. Tenant, Tenure-holder,

UNIT – II Revenue Board and Revenue officer

1. Constitution and Conditions of service of members.
2. Jurisdiction of Board and Powers of Board.
3. Revenue Officers, Their Classes and Powers and Procedure of Revenue Officer and revenue courts.
4. Powers of State Government to alter the limits
5. Powers of State Government of appointing Revenue Officers
6. Sub-Divisional Officers
7. Powers to transfer Cases
8. Conferral of Status of Courts, Inherent Powers and other Powers of Revenue Courts
9. Appeal, Revision and Review
10. Appellate, Authorities and their powers and limitation for appeals,
11. Revision
12. Review of orders
13. Stay of execution of orders

Land and Land Revenue

1. State ownership in all lands, Liability of land to pay land revenue, land exempted from payment of land revenue, and variation of land revenue
2. Assessment, Reassessment,
3. Revenue Survey and Settlement in Non Urban Area.
4. Appointment and Powers of Settlement Officers,
5. Revenue Survey,
6. Settlement of Rent,
7. Assessment and Re-Assessment of Land in Urban Area,
8. Land Records
9. Formation of circles and appointment of Patwari and Revenue Inspectors,
10. Land Records, Field Map, Record of rights,
11. Realisation of Land Revenue.

UNIT – III Tenure Holders

1. Bhuswami
2. Right of Transfer, Forfeiture, lease, set aside of transfer, Reversion of land of members of aboriginal tribes, Diversion of land, Relinquishment, abandonment, disposal and partition of holding,
3. Occupancy Tenants,

UNIT – IV Government lessee and service land rights and liabilities of Government lessee

1. Government lease - Appointment, Termination of lease, Service Land
2. Alluvion and Deluvion
3. Consolidation of Holding
4. Village Officers
5. Patels
6. Kotwars

UNIT – V Rights in Abadi and unoccupied Land

1. Gram Sabha
2. Wajib-ul-arz
3. Nistar Patrak
4. Rights in forest Easement
5. Exclusive Jurisdiction of Revenue Courts
6. Miscellaneous Provisions

SELECT BIBLIOGRAPHY:-

1. M.P. Land Revenue Code – 1959 (Jindal) 2008 Ed.
2. Basantilal Babel (Diglot) Vedpal Law in India 2007

B.A. LL.B. (HONS.) PART-IV SEMESTER - VII
PAPER – IV BANKING LAW

UNIT-I - Introduction

1. Evolution of Banking institution in India, banking definition, banking company in India, banking legislation in India- common law and statutory,
2. System and Classification of banks – essential functions and special functions
3. Agency services
4. E Banking and recent trends in banking

UNIT-II Banker and Customers

1. Customer, Banker – definition and nature
2. Legal character of banker - customer relationship
3. Special types of customers: Lunatics, minors, agents administrators and executors. partnership firms and companies
4. Duties and liabilities of banks and customers

UNIT – III Negotiable Instrument

1. Cheque- Meaning and characteristics, Duties and liabilities of banks payment of cheques by bank, liabilities of the banker in case of dishonour, protection of paying banker - forged cheques, alteration of cheque, collection of cheques and drafts- protection of collecting banker.
2. Crossing of cheques
3. Bill of exchange, promissory note – Meaning and characteristics and types of hundi, notary public noting protest, acceptance for honour, payment for honour
4. Holder and holder in due course- Definition and distinction between a holder and holder in due course,
5. Endorsement and its kinds, Acceptance, Presentment and Payment
6. Dishonour and discharge of negotiable instrument

UNIT-IV Central Banking Theory and RBI

1. Characteristics and function of central banks
2. The Reserve Bank of India as central bank of India
3. Objectives and organizational structure of RBI
4. Functions, Regulations of the monetary system, Monopoly of note issue
5. Credit control, Determination of bank rate policy, Open market operations, Banker's Bank, Banker of Government, Control over non- banking financial institutions, Economic and statistical research, Staff training, Control and supervisions of other banks.

UNIT-V Merchant Banking

1. Merchant banking in India.
2. SEBI (Merchant Bankers) Regulations. 1992.
3. Recovery of Debts Due to Bank and Financial institutions Act. 1993


REGISTRAR

Bhabha University, Bhopal

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL
Jatkhedi, NH-12, Hoshangabad Road, Bhopal-462026

SELECTED BIBLIOGRAPHY:-

1. M.S. Parthasarthy (ed.) Kherganvala on the Negotiable Instruments Act (1998), Butterworth, New- Delhi
2. M.L. Tannon, Tannon's Banking Law and Practice in India, (2000) India Law House, New Delhi.
3. S.N. Gupta, The Banking Law in Theory and Practice, (1999), Universal New Delhi.
4. G.S.N. Tripathi (ed.), Sethi's Commentaries on Banking Regulation Act 1949 and Allied Banking Laws (2000), Law Pub. Allahabad.


REGISTRAR
Bhabha University, Bhopal

B.A. L.L.B. (HONS.) PART-IV SEMESTER - VII
PAPER-V PROFESSIONAL ETHICS AND PROFESSIONAL ACCOUNTING
SYSTEM

Note: The written exam of this paper will have 80 marks and viva-voce will carry 20 marks

UNIT –I Admission, Enrolment & Rights of Advocate

1. Importance of Legal Profession.
2. Persons who may be admitted as advocate on a State roll.
3. Disqualification for enrolment, 4. Rights of Advocates,
5. State Bar Councils
 - (i) Establishment and Organisation, (ii) Powers and Functions
4. Bar Council of India
 - (i) Organisation, (ii) Powers and Functions

UNIT – II Ethics of Legal Profession

1. Meaning, Nature and Need, 2. Duty to the Client

UNIT – III Punishment for Professional or Other Misconduct

1. Professional or other Misconduct- Meaning and Scope
2. The Body or Authority empowered to punish for professional or other misconduct.
 - (i) State Bar Council and its disciplinary committee
 - (ii) Bar Council of India- and its disciplinary committee
3. Complaint against advocates and procedure to be followed by the Disciplinary Committee.
4. Remedies against the order of punishment.

UNIT – IV Bench Bar Relation

1. Role of Judge on Maintaining Rule of Law, 2. Mutual Respect
3. Maintenance of orderly society, 4. Invaluable aid of advocates to Judges
5. Privilege of Advocates, 6. Duty to avoid interruption of Council
7. Administration of Justice clean & Pure
8. Uncourteous conduct, Misconduct of lawyers and Insulting Language.

UNIT – V Meaning and Categories of Contempt of Court

1. Contempt of Court- Its meaning and Nature
2. Kinds of Contempt
 - (i) Criminal Contempt, (ii) Civil Contempt
3. Contempt by Lawyers
4. Contempt by Judges, Magistrates or other persons acting judicially
5. Contempt by State, Corporate bodies & other officers

SELECTED BIBLIOGRAPHY:-

1. J.P.S. Sirohi : Professional Ethics, Lawyer's Accountability, Bench- Bar Relationship.
2. Kailash Rai : Legal Ethics, Accountability, for Lawyer's , Bar-Bench Relation.